

termination. 2006, c. 17, s. 66 (2).

Termination for cause, too many persons

67 (1) A landlord may give a tenant notice of termination of the tenancy if the number of persons occupying the rental unit on a continuing basis results in a contravention of health, safety or housing standards required by law. 2006, c. 17, s. 67 (1).

Notice

(2) A notice of termination under this section shall,

- (a) provide a termination date not earlier than the 20th day after the notice is given;
- (b) set out the details of the grounds for termination; and
- (c) require the tenant, within seven days, to reduce the number of persons occupying the rental unit to comply with health, safety or housing standards required by law. 2006, c. 17, s. 67 (2).

Notice void if tenant complies

(3) The notice of termination under this section is void if the tenant, within seven days after receiving the notice, sufficiently reduces the number of persons occupying the rental unit. 2006, c. 17, s. 67 (3).

Notice of termination, further contravention

68 (1) A landlord may give a tenant notice of termination of the tenancy if,

- (a) a notice of termination was given to the tenant under section 62, 64 or 67; and
- (b) more than seven days but less than six months after the notice mentioned in clause (a) was given to the tenant, an activity takes place, conduct occurs or a situation arises that constitutes grounds for a notice of termination under section 60, 61, 62, 64 or 67, other than an activity, conduct or a situation that is described in subsection 61 (1) and that involves an illegal act, trade, business or occupation described in clause 61 (2) (a). 2006, c. 17, s. 68 (1); 2017, c. 13, s. 12.

Same

(2) The notice under this section shall set out the date it is to be effective and that date shall not be earlier than the 14th day after the notice is given. 2006, c. 17, s. 68 (2).

▼ Section Amendments with date in force (d/m/y)

APPLICATION BY LANDLORD – AFTER NOTICE OF TERMINATION

Application by landlord

69 (1) A landlord may apply to the Board for an order terminating a tenancy and evicting the tenant if the landlord has given notice to terminate the tenancy under this Act or the *Tenant Protection Act, 1997*. 2006, c. 17, s. 69 (1).

Same

(2) An application under subsection (1) may not be made later than 30 days after the termination date specified in the notice. 2006, c. 17, s. 69 (2).

Exception

(3) Subsection (2) does not apply with respect to an application based on the tenant's failure to pay rent. 2006, c. 17, s. 69 (3).

No application during remedy period

70 A landlord may not apply to the Board for an order terminating a tenancy and evicting the tenant based on a notice of termination under section 62, 64 or 67 before the seven-day remedy period specified in the notice expires. 2006, c. 17, s. 70.

Immediate application

71 Subject to section 70 and subsection 74 (1), a landlord who has served a notice of termination may apply immediately to the Board under section 69 for an order terminating the tenancy and evicting the tenant. 2006, c. 17, s. 71.

Application based on certain notice

Affidavit under s. 72 (1)

71.1 (1) A landlord who, on or after the day subsection 11 (1) of Schedule 4 to the

Protecting Tenants and Strengthening Community Housing Act, 2020 comes into force, files an application under section 69 based on a notice of termination given under section 48 or 49 shall file the affidavit required under subsection 72 (1) at the same time as the application is filed. 2020, c. 16, Sched. 4, s. 11 (1).

Non-compliance with subs. (1)

(2) The Board shall refuse to accept the application for filing if the landlord has not complied with subsection (1). 2020, c. 16, Sched. 4, s. 11 (1).

Previous use of notices under s. 48, 49 or 50

(3) A landlord who, on or after the day subsection 11 (2) of Schedule 4 to the *Protecting Tenants and Strengthening Community Housing Act, 2020* comes into force, files an application under section 69 based on a notice of termination given under section 48, 49 or 50 shall, in the application,

- (a) indicate whether or not the landlord has, within two years prior to filing the application, given any other notice under section 48, 49 or 50 in respect of the same or a different rental unit; and
- (b) set out, with respect to each previous notice described in clause (a),
 - (i) the date the notice was given,
 - (ii) the address of the rental unit in respect of which the notice was given,
 - (iii) the identity of the intended occupant in respect of whom the notice was given if the notice was given under section 48 or 49, and
 - (iv) such other information as may be required by the Rules. 2020, c. 16, Sched. 4, s. 11 (2).

Non-compliance with subs. (3)

(4) The Board shall refuse to accept the application for filing if the landlord has not complied with subsection (3). 2020, c. 16, Sched. 4, s. 11 (2).

▼ Section Amendments with date in force (d/m/y)

Landlord or purchaser personally requires premises

72 (1) The Board shall not make an order terminating a tenancy and evicting the tenant in an application under section 69 based on,

(a) a notice of termination given under section 48 on or after the day section 13 of the *Rental Fairness Act, 2017* comes into force, unless the landlord has filed with the Board an affidavit sworn by the person who personally requires the rental unit certifying that the person in good faith requires the rental unit for his or her own personal use for a period of at least one year; or

Note: On a day to be named by proclamation of the Lieutenant Governor, clause 72 (1) (a) of the Act is amended by striking out “on or after the day section 13 of the *Rental Fairness Act, 2017* comes into force”. (See: 2023, c. 10, Sched. 7, s. 6 (1))

(b) a notice of termination under section 49, unless the landlord has filed with the Board an affidavit sworn by the person who personally requires the rental unit certifying that the person in good faith requires the rental unit for his or her own personal use. 2017, c. 13, s. 13.

Same

(1.1) The Board shall not make an order terminating a tenancy and evicting the tenant in an application under section 69 based on a notice of termination given under section 48 before the day section 13 of the *Rental Fairness Act, 2017* comes into force, unless the landlord has filed with the Board an affidavit sworn by the person who personally requires the rental unit certifying that the person in good faith requires the rental unit for his or her own personal use. 2017, c. 13, s. 13.

Note: On a day to be named by proclamation of the Lieutenant Governor, subsection 72 (1.1) of the Act is repealed. (See: 2023, c. 10, Sched. 7, s. 6 (2))

Same

(2) The Board shall not make an order terminating a tenancy and evicting the tenant in an application under section 69 based on a notice of termination under section 48 or 49 where the landlord’s claim is based on a tenancy agreement or occupancy agreement that purports to entitle the landlord to reside in the rental unit unless,

(a) the application is brought in respect of premises situate in a building containing not more than four residential units; or

(b) one or more of the following people has previously been a genuine occupant of the premises:

- (i) the landlord,
- (ii) the landlord's spouse,
- (iii) a child or parent of the landlord or the landlord's spouse, or
- (iv) a person who provided care services to the landlord, the landlord's spouse, or a child or parent of the landlord or the landlord's spouse. 2006, c. 17, s. 72 (2); 2021, c. 4, Sched. 11, s. 31 (1).

Determination of good faith

(3) In determining the good faith of the landlord or the purchaser, as applicable, in an application described in subsection (1), (1.1) or (2), the Board may consider any evidence the Board considers relevant that relates to the landlord's or purchaser's previous use of notices of termination under section 48, 49 or 50 in respect of the same or a different rental unit. 2020, c. 16, Sched. 4, s. 12.

Note: On a day to be named by proclamation of the Lieutenant Governor, subsection 72 (3) of the Act is amended by striking out "subsection (1), (1.1) or (2)" and substituting "subsection (1) or (2)". (See: 2023, c. 10, Sched. 7, s. 6 (3))

Application of subs. (3)

(4) Subsection (3) applies with respect to any application described in subsection (1), (1.1) or (2) that,

- (a) is made on or after the day section 12 of Schedule 4 to the *Protecting Tenants and Strengthening Community Housing Act, 2020* comes into force; or
- (b) was made before that day and was not finally determined before that day. 2020, c. 16, Sched. 4, s. 12.

Note: On a day to be named by proclamation of the Lieutenant Governor, subsection 72 (4) of the Act is amended by striking out "subsection (1), (1.1) or (2)" and substituting "subsection (1) or (2)". (See: 2023, c. 10, Sched. 7, s. 6 (3))

▼ Section Amendments with date in force (d/m/y)

Demolition, conversion, repairs

73 (1) The Board shall not make an order terminating a tenancy and evicting the tenant in an application under section 69 based on a notice of termination under section 50 unless it is satisfied that,

(a) the landlord intends in good faith to carry out the activity on which the notice of termination was based; and

(b) the landlord has,

(i) obtained all necessary permits or other authority that may be required to carry out the activity on which the notice of termination was based, or

(ii) has taken all reasonable steps to obtain all necessary permits or other authority that may be required to carry out the activity on which the notice of termination was based, if it is not possible to obtain the permits or other authority until the rental unit is vacant. 2006, c. 17, s. 73.

Determination of good faith

(2) In determining the good faith of the landlord in an application described in subsection (1), the Board may consider any evidence the Board considers relevant that relates to the landlord's previous use of notices of termination under section 48, 49 or 50 in respect of the same or a different rental unit. 2020, c. 16, Sched. 4, s. 13.

Application of subs. (2)

(3) Subsection (2) applies with respect to any application described in subsection (1) that,

(a) is made on or after the day section 13 of Schedule 4 to the *Protecting Tenants and Strengthening Community Housing Act, 2020* comes into force; or

(b) was made before that day and was not finally determined before that day. 2020, c. 16, Sched. 4, s. 13.

Note: On a day to be named by proclamation of the Lieutenant Governor, section 73 of the Act is amended by adding the following subsection: (See: 2023, c. 10, Sched. 7, s. 7)

Report re repairs, renovations

(4) In determining an application with respect to a notice of termination given under clause 50 (1) (c), the Board shall consider but is not bound by a report referred to in clause 50 (3) (b) stating that the repairs or renovations are so extensive that they require vacant possession of the rental unit. 2023, c. 10, Sched. 7, s. 7.

▼ Section Amendments with date in force (d/m/y)

Compensation under s. 48.1, 49.1, 52, 54 or 55

73.1 (1) If the landlord compensated the tenant under section 48.1, 49.1, 52, 54 or 55, as the case may be, in connection with a notice of termination under section 48, 49 or 50 and the Board refuses to grant an application under section 69 for an order terminating the tenancy and evicting the tenant based on the notice, the Board may order that the tenant pay back the compensation to the landlord. 2017, c. 13, s. 14; 2020, c. 16, Sched. 4, s. 14.

Transition

(2) The Board may make an order under subsection (1) on an application described in that subsection even if the application was made before the day section 14 of the *Rental Fairness Act*, 2017 comes into force. 2017, c. 13, s. 14.

▼ Section Amendments with date in force (d/m/y)

Non-payment of rent

74 (1) A landlord may not apply to the Board under section 69 for an order terminating a tenancy and evicting the tenant based on a notice of termination under section 59 before the day following the termination date specified in the notice. 2006, c. 17, s. 74 (1).

Discontinuance of application

(2) An application by a landlord under section 69 for an order terminating a tenancy and evicting the tenant based on a notice of termination under section 59 shall be discontinued if, before the Board issues the eviction order, the Board is satisfied that the tenant has paid to the landlord or to the Board,

- (a) the amount of rent that is in arrears under the tenancy agreement;
- (b) the amount of additional rent that would have been due under the tenancy agreement as at the date of payment by the tenant had notice of termination not been given; and
- (c) the landlord's application fee. 2006, c. 17, s. 74 (2).

Order of Board

(3) An order of the Board terminating a tenancy and evicting the tenant in an application under section 69 based on a notice of termination under section 59 shall,

(a) specify the following amounts:

- (i) the amount of rent that is in arrears under the tenancy agreement,
- (ii) the daily amount of compensation that must be paid under section 86, and
- (iii) any costs ordered by the Board;

(b) inform the tenant and the landlord that the order will become void if, before the order becomes enforceable, the tenant pays to the landlord or to the Board the amount required under subsection (4) and specify that amount; and

(c) if the tenant has previously made a motion under subsection (11) during the period of the tenant's tenancy agreement with the landlord, inform the tenant and the landlord that the tenant is not entitled to make another motion under that subsection during the period of the agreement. 2006, c. 17, s. 74 (3).

Payment before order becomes enforceable

(4) An eviction order referred to in subsection (3) is void if the tenant pays to the landlord or to the Board, before the order becomes enforceable,

- (a) the amount of rent that is in arrears under the tenancy agreement;
- (b) the amount of additional rent that would have been due under the tenancy agreement as at the date of payment by the tenant had notice of termination not been given;
- (c) the amount of NSF cheque charges charged by financial institutions to the landlord in respect of cheques tendered to the landlord by or on behalf of the

tenant, as allowed by the Board in an application by the landlord under section 87;

(d) the amount of administration charges payable by the tenant for the NSF cheques, as allowed by the Board in an application by the landlord under section 87; and

(e) the costs ordered by the Board. 2006, c. 17, s. 74 (4).

Notice of void order

(5) If, before the eviction order becomes enforceable, the tenant pays the amount specified in the order under clause (3) (b) to the Board, an employee in the Board shall issue a notice to the tenant and the landlord acknowledging that the eviction order is void under subsection (4). 2006, c. 17, s. 74 (5); 2013, c. 3, s. 27 (1).

Determination that full amount paid before order becomes enforceable

(6) If, before the eviction order becomes enforceable, the tenant pays the amount due under subsection (4) either in whole to the landlord or in part to the landlord and in part to the Board, the tenant may make a motion to the Board, without notice to the landlord, for an order determining that the tenant has paid the full amount due under subsection (4) and confirming that the eviction order is void under subsection (4). 2006, c. 17, s. 74 (6).

Evidence

(7) A tenant who makes a motion under subsection (6) shall provide the Board with an affidavit setting out the details of any payments made to the landlord and with any supporting documents the tenant may have. 2006, c. 17, s. 74 (7).

No hearing

(8) The Board shall make an order under subsection (6) without holding a hearing. 2006, c. 17, s. 74 (8).

Motion by landlord

(9) Within 10 days after an order is issued under subsection (6), the landlord may, on notice to the tenant, make a motion to the Board to have the order set aside. 2006,

c. 17, s. 74 (9).

Order of Board

(10) On a motion under subsection (9), the Board shall hold a hearing and shall,

- (a) if satisfied that the tenant paid the full amount due under subsection (4) before the eviction order became enforceable, refuse to set aside the order made under subsection (6);
- (b) if satisfied that the tenant did not pay the full amount due under subsection (4) before the eviction order became enforceable but that the tenant has since paid the full amount, refuse to set aside the order made under subsection (6); or
- (c) in any other case, set aside the order made under subsection (6) and confirm that the eviction order is not void under subsection (4). 2006, c. 17, s. 74 (10).

Payment after order becomes enforceable

(11) A tenant may make a motion to the Board, on notice to the landlord, to set aside an eviction order referred to in subsection (3) if, after the order becomes enforceable but before it is executed, the tenant pays an amount to the landlord or to the Board and files an affidavit sworn by the tenant stating that the amount, together with any amounts previously paid to the landlord or to the Board, is at least the sum of the following amounts:

1. The amount of rent that is in arrears under the tenancy agreement.
2. The amount of additional rent that would have been due under the tenancy agreement as at the date of payment by the tenant had notice of termination not been given.
3. The amount of NSF cheque charges charged by financial institutions to the landlord in respect of cheques tendered to the landlord by or on behalf of the tenant, as allowed by the Board in an application by the landlord under section 87.
4. The amount of administration charges payable by the tenant for the NSF cheques, as allowed by the Board in an application by the landlord under section 87.
5. The costs ordered by the Board. 2006, c. 17, s. 74 (11); 2009, c. 33, Sched. 21,